

expenditure respectively for the two financial years ending the thirty-first day of March nineteen hundred and ten and the thirty-first day of March nineteen hundred and eleven.

PART VII.

MISCELLANEOUS.

Repeal, construction, and short title.

20.—(1) The enactments specified in the Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

(2) Part I. of this Act shall be construed together with Part I. of the principal Act.

Part. II. of this Act shall be construed together with the Acts which relate to duties of Excise and the management of those duties.

5 & 6 Vict.
c. 35.
16 & 17 Vict.
c. 34.
54 & 55 Vict.
c. 39.

Part III. of this Act shall be construed together with the Income Tax Acts, 1842 and 1853, and any other enactments relating to income tax.

Part IV. of this Act shall be construed together with the Stamp Act, 1891.

(3) This Act may be cited as the Revenue Act, 1911.

SCHEDULE.

Section 20.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
10 Edw. 7. c. 8.	Finance (1909-10) Act, 1910.	Section fourteen, subsection (3); section forty-four, subsection (1); the words "and on licences for motor cars" in subsection (1) of section eighty-eight; subsection (3) of section eighty-eight; and section ninety-one.

CHAPTER 3.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army.

[28th April 1911.]

WHEREAS the raising or keeping of a standing army within the United Kingdom of Great Britain and Ireland in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of forces should be con-

tinued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of one hundred and eighty-six thousand four hundred, including those to be employed at the depôts in the United Kingdom of Great Britain and Ireland for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions :

And whereas it is also judged necessary for the safety of the United Kingdom, and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm ; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law, in their duty, that an exact discipline be observed, and that persons belonging to the said forces who mutiny or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act will expire in the year one thousand nine hundred and eleven on the following days :—

- (a) In the United Kingdom, the Channel Islands, and the Isle of Man, on the thirtieth day of April ; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. This Act may be cited as the Army (Annual) Act, 1911. Short title

2.—(1) The Army Act shall be and remain in force during the periods herein-after mentioned, and no longer, unless otherwise provided by Parliament (that is to say) :—

- (a) Within the United Kingdom, the Channel Islands, and the Isle of Man, from the thirtieth day of April one

Army Act to be in force for specified times.

thousand nine hundred and eleven to the thirtieth day of April one thousand nine hundred and twelve, both inclusive; and

- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July one thousand nine hundred and eleven to the thirty-first day of July one thousand nine hundred and twelve, both inclusive.

(2) The Army Act, while in force, shall apply to persons subject to military law, whether within or without His Majesty's dominions.

(3) A person subject to military law shall not be exempted from the provisions of the Army Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the number herein-before mentioned.

Prices in re-
spect of billet-
ing.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act the prices specified in the Schedule to this Act.

AMENDMENTS OF ARMY ACT.

Amendment of
section 114 of
the Army Act
with respect to
lists of car-
riages and
animals.

7 Edw. 7. c. 9.

4.—(1) The power conferred on police authorities by section one hundred and fourteen of the Army Act of causing lists to be made out of persons liable to furnish carriages and animals and of the number and description of the carriages and animals of such persons may in England and Scotland be exercised either by the police authority or by the county association established under the Territorial and Reserve Forces Act, 1907, and accordingly in that section the words "the authority herein-after mentioned" shall be substituted for the words "the police authority," wherever those words occur, and at the end of the section the following subsection shall be added:—

"(4) The authority for the purposes of this section shall, in England and Scotland, be either the police authority or the county association established under the Territorial and Reserve Forces Act, 1907, and in Ireland the police authority."

(2) After subsection (1) of the same section the following subsection shall be inserted:

"(1A) For the purpose of assisting the authority herein-after mentioned in the preparation of such list as aforesaid, any proper officer authorised in that behalf by the authority shall be entitled at all reasonable times to enter any premises in which he has reason to believe that any carriages or animals are kept, and to inspect any carriages or animals which may be found therein.

"If any such officer so authorised is obstructed in the exercise of his powers under this provision, a justice of the peace may, if satisfied by information on oath that the officer has been so obstructed, issue a search warrant authorising the

constable named therein, accompanied by the officer, to enter the premises in respect of which the obstruction took place at any time between six o'clock in the morning and nine o'clock in the evening, and to inspect any carriages or animals that may be found therein.

"In this provision the expression 'proper officer' means any officer or person of such rank, class, or description as may be specified in an order of the Army Council made for the purpose."

5. The following provision shall be inserted at the end of subsection (3) of section one hundred and forty-five of the Army Act (which relates to the liability of a soldier to maintain his wife and children):—

Amendment of section 145 of the Army Act with respect to deductions on account of process money.

"Where, by an order or decree sent to the Army Council or officer in accordance with subsection (2) of this section, the soldier is adjudged to pay as costs incurred in obtaining the order or decree any sum left in the hands of the commanding officer under this subsection, the Army Council may cause a sum equal to the sum so left to be paid in liquidation of the sum so adjudged to be paid as costs, and the amount so paid by the Army Council shall be a public debt from the soldier against whom the order or decree was made, and, without prejudice to any other method of recovery, may be recovered by deductions from his daily pay, in addition to those mentioned in subsection (2) of this section."

SCHEDULE.

Section 3.

Accommodation to be provided.	Maximum Price.
Lodging and attendance for soldier where meals furnished.	Sixpence per night.
Breakfast as specified in Part I. of the Second Schedule to the Army Act.	Fourpence each.
Dinner as so specified	Elevenpence halfpenny each.
Supper as so specified	Twopence halfpenny each.
Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Sixpence per day.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw per day for each horse.	One shilling and ninepence per day.
Lodging and attendance for officer	Two shillings per night.

Note.—An officer shall pay for his food.